

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and
TOKE OIL AND GAS, S.A.

Plaintiffs,

vs.

MARC M. MOSZKOWSKI

Defendant.

Case No.: 2018 CA 000543

Division: "E"

**DEFENDANT’S NOTICE OF FILING SECTION-BY-SECTION REBUTTAL
TO PROPOSED FINAL JUDGMENT AND CORRECTION OF MATERIAL
MISREPRESENTATIONS**

COMES NOW Defendant, Marc Moszkowski, pro se, and hereby gives
notice of filing the document titled:

**“Defendant’s Section-by-Section Rebuttal to Proposed Final
Judgment and Correction of Material Misrepresentations”**

This document is submitted to correct the record, to preserve objections
for appeal, and to address misstatements of fact and law in the Proposed
Final Judgment submitted by Plaintiffs.

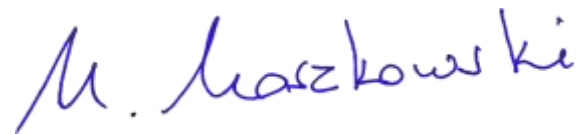
Respectfully submitted this 9th day of July, 2025.

Marc Moszkowski, Pro Se

Email: m.moszkowski@deepgulf.net

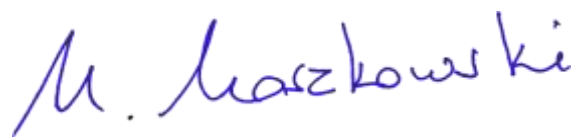
Le Verdos

83300 Châteaudouble, France

A handwritten signature in blue ink that reads "M. Moszkowski". The signature is written in a cursive, flowing style.

CERTIFICATE OF SERVICE

I hereby certify that, on this 9th day of July, 2025, a copy of this Notice has been furnished to Braden K. Ball, Jr., attorney for the plaintiffs, through the Florida Courts E-Filing Portal.

A handwritten signature in blue ink that reads "M. Moszkowski". The signature is written in a cursive, flowing style.

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**DEFENDANT'S SECTION-BY-SECTION REBUTTAL TO PROPOSED
FINAL JUDGMENT AND CORRECTION OF MATERIAL
MISREPRESENTATIONS**

COMES NOW Defendant, Marc Moszkowski, pro se, and respectfully submits the following rebuttal to the proposed Final Judgment submitted by Plaintiffs' counsel. This response addresses and corrects material misstatements of fact, law, and chronology that permeate the proposed order. Defendant files this rebuttal not only to preserve the factual record and prevent misrepresentation from becoming final by default, but to ensure that any reviewing authority is presented with a coherent, evidentiary account of the litigation.

For ease of reference, this rebuttal is organized by section or paragraph number, matching the structure of the proposed Final Judgment as much as possible.

Preamble – Constructive Exclusion and False Framing of Default

Defendant did not “fail to appear.” Defendant was physically incapable of attending trial due to two untreated hernias and geographic isolation 5,000 miles away, compounded by financial destitution directly aggravated by Plaintiffs’ shareholder’s lien. Repeated, medically documented requests for remote appearance were denied without meaningful review. The Court’s refusal to acknowledge Defendant’s condition and exclusion from trial participation constitutes constructive exclusion from proceedings, depriving Defendant of meaningful access to the tribunal, in violation of due process..

Paragraph 1 – False Founding Narrative and Chronological Fabrication

The assertion that “Toke Oil and Gas, S.A. is presently a wholly owned subsidiary of DeepGulf, domiciled in Timor Leste” is factually false and legally unsustainable. Toke has no current legal existence, no verified domicile in Timor Leste, and no ongoing operations. The continued use of its name by Plaintiffs constitutes, under Timor Leste law, the unauthorized

impersonation of a defunct or non-existent entity, and may amount to legal fraud under applicable international corporate standards, particularly given Plaintiffs' ongoing disregard for and noncompliance with the business entity laws and registration requirements of Timor Leste, whose jurisdiction they continue to invoke without legal standing or commitment to its statutory obligations. Plaintiffs have failed to produce any corporate registration, legal address, or evidence of functional activity. DeepGulf's supposed ownership of a non-functioning shell does not establish any valid ongoing corporate relationship or legal domicile.

The claim that DeepGulf was formed following a "visit hosted by Moszkowski in Provence" is chronologically impossible. DeepGulf, Inc. was incorporated on December 1, 2004. The referenced visit took place in the second half of January 2005—one and a half months after incorporation. Furthermore, the invention central to DeepGulf's stated mission was created by Defendant two years prior to meeting Howard, who had no technical background or experience in commercializing deepwater technology and was only expected to raise capital.

Count 1 – Ownership of Public, Expired, or Abandoned Intellectual Property

The proposed judgment declares ownership over patents that are either expired or lapsed due to Plaintiffs' own negligence. Several of the listed patent publications are not enforceable patents but expired or ungranted disclosures now in the public domain. The judgment also seeks ownership of "any and all undisclosed inventions"—a blanket claim over Defendant's intellectual efforts without consideration, contract, or legal basis.

Count 2 – Fabricated Categories of Property and Vagueness of Relief

The judgment demands the return of undefined categories—"software," "hardware," "customer lists," and "other information"—without identifying a single specific item. Defendant has already provided all electronic data and correspondence, including more than 20,000 documents. Plaintiffs have failed to identify any proprietary material or demonstrate that anything remains withheld. The vagueness of the judgment renders it both unenforceable and unjust.

Count 2 – Breach of Non-Competition Agreement

Plaintiffs claim Defendant breached a non-compete agreement by "withholding DeepGulf's technology from the Board." This is fabricated.

Defendant shared all developments in real-time, and the “Board” consisted at times of only two individuals: Defendant and Howard. Howard had full access to all information. No formal request was ever made. The accusation has no basis in fact or record.

Count 3 – Civil Theft – \$345,000

The narrative presented in this Count is not only factually inaccurate but borders on the absurd in its assumptions, contradictions, and disregard for the evidentiary record.

Paragraph A: *“On September 10, 2007, DeepGulf received an inquiry about using its patented J-Flex Pipelay system for a project in East Timor. Howard passed this inquiry to Moszkowski...”*

One may wonder at the relevance of who received the inquiry first, but for the sake of factual accuracy: the inquiry was received by Rus Howard's secretary on September 11, 2007, while Defendant had already received a direct inquiry on September 10, 2007, directly—not through Howard—a day before Howard's secretary received a similar message. Howard's supposed “passing” of the inquiry is retroactive fiction.

Paragraph B: *“...who traveled to East Timor on October 15, 2007...”*

False. Defendant traveled on November 12, 2007, and entirely at his own expense. DeepGulf had no operating funds, and Defendant had been solely funding the company's operations since inception without receiving any salary, contrary to the DHS conditions of his visa.

Paragraph C: *"...to investigate the opportunity on DeepGulf's behalf... Moszkowski made himself an owner with 30,000 shares (33%) of Toke..."*

This is revisionist history. The only viable structure was a local Timorese company, with ownership shared with respected local figures. Defendant held 33.3% for the benefit of DeepGulf until its formal acquisition in 2012. At the time, even if the option had existed with regard to the Timorese owners, which verges on the ridiculous, Toke could not be made a subsidiary of DeepGulf due to legal, financial, and political constraints, including lack of capital and local restrictions on foreign ownership.

Paragraph D: *"...without DeepGulf's authorization."*

False. DeepGulf and Howard were informed contemporaneously. Howard later accepted distributions totaling \$1.3 million from Toke, affirming de facto approval.

Paragraph E: *“Moszkowski misrepresented to DeepGulf, Inc. that governmental regulations prevented DeepGulf from holding Toke directly...”*

There was no misrepresentation. At the time, foreign ownership of 100% of a Timorese company was not permitted. More importantly, any attempt to create a wholly owned subsidiary of a tiny U.S. micro-cap entity in a volatile political environment just after an assassination attempt on both the President and the Prime-Minister would have been utterly reckless.

Paragraph F: *“From 2010 to 2011, Moszkowski caused Toke to pay him \$345,000 in ‘Director Salaries’...”*

False. Defendant did not have the authority to cause any payments from Toke. All disbursements required the co-signature of one of the two Timorese Director-Generals. These funds came from the Timorese owner’s share and were wired voluntarily to help Defendant cover unpaid taxes due to DeepGulf’s failure to pay his salary from 2005 to 2007 inclusive.

Paragraph G: *“...which Howard did not discover until October 2017...”*

Another blatant falsehood. Howard had been fully informed in 2010, 2011, 2012, and 2014 about these payments. This is corroborated by documents already on the record.

Paragraph H: *“An email dated November 29, 2017... stated the payments were ‘for your eyes only’...”*

Taken out of context. That phrase was used rhetorically, not to conceal. Howard already knew of the payments years earlier, and the relevant disclosures were shared with DeepGulf’s other director. Defendant’s “for your eyes only” and “to make him sweat” phrasing referred to interpersonal tensions, not financial concealment. At any rate, temporarily restraining information already in his possession from one of three Directors can hardly be considered by any reasonable observer as hiding it from the corporation. Howard was only one of three Directors, and he had had the information for years.

Count 3 – Civil Theft Based on Funds Not Owned by Plaintiff

Plaintiffs repeatedly assert that Defendant “caused” certain payments to be made, but provide no documentary evidence that Defendant held such unilateral authority. Under Toke’s structure, no payment could be executed without co-signature from at least one of the Timorese Director-Generals. Defendant held only 33.33% of shares and was not authorized to unilaterally issue financial instructions.

Every payment was subject to dual approval, and the idea that an experienced co-founder would passively allow disbursements he opposed is not only implausible, but condescending. Plaintiffs' narrative relies on unfounded inferences, not evidence—and attempts to rewrite basic corporate procedure.

The \$345,000 payment in question came from a Timorese co-owner of Toke as a personal act of solidarity and was documented. DeepGulf had no ownership over that portion of funds and has no standing to claim theft. No wrongful act occurred, and the payment was fully disclosed contemporaneously.

Count 4 – Civil Theft - \$959,764.22

The proposed judgment finds that Plaintiffs failed to prove civil theft of the \$959,764.22 under Florida Statutes § 772.11 due to lack of evidence of Defendant's intent to deprive DeepGulf of the funds. However, Plaintiffs simultaneously accuse Defendant of "civil theft" of \$345,000—funds which originated from the exact same party (a Timorese co-owner of Toke), under the same conditions, during the same time period, and from the same 49.7% share of revenue not due to DeepGulf.

This \$345,000 was wired by the Timorese out of their personal proceeds to help Defendant cover unpaid French taxes—caused by DeepGulf's own failure to pay Defendant's salary between 2005 and 2007 inclusive. This act was voluntary, documented, and reported in real time. If the \$959,764.22 cannot be deemed stolen from DeepGulf, then logically and legally, neither can the \$345,000, which came from the same pool of funds.

Moreover, Defendant never had the authority to disburse Toke's funds unilaterally. All financial disbursements required co-signature from at least one of the two Timorese Director-Generals. Defendant held only a 33.33% equity interest and no majority or unilateral signing authority. All payments, including those directed to DeepGulf or to Defendant, were decided, approved and executed under joint authorization.

The underlying claim assumes absolute control where none existed, and is refuted by the structure, bylaws, and historical practice of Toke itself. To claim otherwise is not merely inconsistent—it is absurd.

Count 7 – Fraudulent Misrepresentation Inversion and Evidence Misuse

Plaintiff Howard has falsely accused Defendant of falsifying the Private Placement Memorandum (PPM) used to solicit investment in DeepGulf, Inc.

Specifically, Howard claimed Defendant included in that PPM the 2010 and 2011 financials of Toke Oil and Gas S.A., despite later admitting that DeepGulf did not own Toke in those years.

This accusation is not only false but fundamentally dishonest.

The PPM in question was authored by Plaintiff Howard, who at the time was both Chairman of the Board and a business school graduate with an Ivy League MBA. Defendant, by contrast, had no training in securities law or corporate finance, had never previously encountered the term "PPM," and signed the document in good faith, trusting his business partner to present truthful and compliant material.

Plaintiff's later assertion—that Defendant created or falsified this PPM—is a malicious reversal of authorship and culpability. It is Plaintiff who prepared the document, who oversaw its contents, and who knowingly incorporated Toke Oil and Gas S.A.'s financials for years during which he now admits DeepGulf had no ownership interest in that entity.

By retroactively accusing Defendant of authoring a deception he did not understand at the time, Plaintiff not only fabricates a legal falsehood but weaponizes his superior knowledge and fiduciary control to scapegoat his

partner. This act is not a simple mischaracterization—it is a calculated misrepresentation, and it stands as evidence of both fraud and retaliatory abuse of process.

Count 7 – Howard’s Misuse of Toke Financials and Retroactive Fraud

The proposed judgment ignores that Howard included Toke’s financials in DeepGulf’s investment materials for 2010 and 2011—years when DeepGulf had no ownership in Toke. This misrepresentation was deliberate and performed without Board review or consent. Defendant’s role was reactive and oppositional, not participatory.

Count 8 – Declaratory Ownership of a Nonexistent Corporate Shell

Plaintiffs request declaratory judgment over an entity that has no current legal existence. Defendant has never disputed since the case was remanded to this Court in 2021 that DeepGulf acquired all shares in Toke on or about 2012. What Defendant disputes is the retroactive assertion of ownership over revenue and assets generated before that date. The judgment resolves a non-existent controversy.

Count 9 – False Claim of Withholding Records Already Produced

The Court’s finding that Defendant failed to provide an accounting ignores

the tens of thousands of records submitted by Defendant beginning as many as 18 years ago. Every financial transaction and document related to Toke was disclosed. Meanwhile, Plaintiffs—despite Defendant owning ~49% of DeepGulf—refuse to provide any accounting from their side.

Count 10 – Alleged Breach Based on Non-Competing Entity and Salary Substitution

Toke was absolutely not a competing entity—it was eventually acquired by DeepGulf, and its revenue was shared with it. The \$345,000 received by Defendant came from a Timorese shareholder to cover salary obligations DeepGulf had failed to meet. This was a remedial, not a competitive, transaction.

Count 11 – Injunction Demanding Control of Domains Plaintiffs Never Owned

The proposed judgment demands the transfer of domain names and digital infrastructure that:

- For some were personally registered, financed, and developed by Defendant long before DeepGulf's incorporation;
- Have been continuously used by Defendant for personal, government, and legal communications;

- And bear no demonstrated link to proprietary information, intellectual property, or client interaction exclusive to DeepGulf.

Among the domains sought is *pipepredictor.com*, which was conceived, coded, and registered years before DeepGulf even existed. It represents Defendant's personal intellectual and mathematical work and was never owned, funded, or claimed by DeepGulf during its operational life. The Court's grant of this domain to Plaintiffs not only violates property rights but confiscates a legacy digital asset with no rational justification.

As for other domains, Plaintiffs have not shown:

- Any formal ownership, either contractually or via registration;
- Any proprietary use, such as exclusive company correspondence, email servers, or brand identification;
- Or any intention of use, as evidenced by their failure to register alternative domains like *deepgulf.com* or *deepgulfinc.com*, or *deepgulf.net* when they were available.

One might reasonably ask: according to what arcane rationale are these domains—if they are indeed so essential—not currently paid for, hosted, or maintained by DeepGulf, Inc.? The answer is simple and should be asked

Plaintiffs. They exist solely through Defendant's initiative, labor, and personal funding.

Defendant's digital assets are not corporate chattel. They are personally created instruments, used for over a decade, and vital to Defendant's remaining identity. Transferring them to Plaintiffs—who have no knowledge of their infrastructure, no intent to maintain them, and no claim of authorship—amounts to state-sanctioned identity theft just to satisfy Mr. Howard's vindictiveness, a man in search of a convenient scapegoat.

Plaintiffs failed to show any domain registration or ownership. Defendant provided email and domain infrastructure out of necessity and personal expense. Plaintiffs had no registered interest in any disputed domain and made no timely attempt to secure alternatives. No harm, infringement, or proprietary misuse was ever demonstrated.

Preservation of Federal Due Process Objection

Defendant, though a foreign national residing overseas, is nevertheless subject to the jurisdiction of this State Court and accordingly entitled to the protections of the United States Constitution, including the Fifth and Fourteenth Amendments. Defendant expressly preserves all objections

arising from violations of procedural due process and denial of meaningful access to the courts.

These violations include, but are not limited to:

- The systematic refusal to engage with or adjudicate Defendant's filings;
- The denial of participation in trial despite documented medical incapacity and financial impossibility;
- The entry of dispositive rulings without notice, hearing, or analysis;
- The disregard of the statute of limitations based on pretextual reasoning that fails any good-faith legal standard;
- And the deprivation of personally developed intellectual and digital property without compensation, hearing, or legal justification.

These cumulative actions and omissions amount to constructive exclusion from the judicial process, in violation of constitutional guarantees afforded to all persons, regardless of citizenship or geographic location, when subject to proceedings in a United States court.

Statistical Summary of Judicial Silence

As of the date of this filing, Defendant has submitted 162 pleadings in this

case. Of those, the Court has denied 15—14 of which by one-line order, without analysis, citation, or acknowledgment of the evidence presented. The remainder—over 140 filings—have received no response or mention at all. This ratio, in combination with the absence of any substantive opinion or evidentiary engagement, supports not just a pattern of non-responsiveness, but a systemic exclusion from meaningful adjudication. Defendant has not merely been overruled; he has been procedurally erased.

Final Note on Statute of Limitations and Implausible Evasion

In addition, Howard’s own personal assistant warmly acknowledged receipt of the accounting of payments—totaling \$345,000—and expressed gratitude for them at the time. This contemporaneous acknowledgment further undermines the claim that Plaintiffs were unaware of or confused by the payment references.

Defendant has repeatedly raised the issue of statutory time bars, supported by dated records showing that Plaintiff was informed of the disputed payments multiple times, with the latest notification no later than March 6, 2014. The most salient notification was a contemporaneous email—still in the record—listing the line items “Payment of Services,” “Director Fee,” and

“Toke Oil and Gas S.A.” with precise U.S. dollar amounts (\$60,000, \$75,000, \$50,000, \$60,000, and \$100,000). As many as six detailed full page bank statements were attached. In response, Plaintiffs offered the extraordinary argument that they could not understand these amounts because parts of the surrounding email were in French. That claim ignores the visual clarity and international consistency of numerals, currency symbols, and English transactional labels embedded in the same message. This assertion strains credibility and cannot withstand good-faith scrutiny.

No good-faith litigant could plausibly deny recognition of “Director Fee” and five U.S. dollar payments labeled as such. The U.S. District Court certainly had no difficulty understanding the statements and subsequently concurring on the applicability of the Statute of Limitations. This Court’s refusal to engage with the statute of limitations argument—and its acceptance of this justification without discussion—reinforces the broader pattern of procedural neglect and one-sided adjudication described above.

Final Observation on Procedural Exclusion

Over more than four years of litigation in this State Court, not a single one of Defendant’s detailed rebuttals—many addressing absurd, internally contradictory, or factually impossible claims—has ever been acknowledged

or discussed. Defendant has filed thousands of pages containing sworn evidence, timelines, original documents, and pointed legal challenges, including numerous examples of forged, backdated, or fictitious materials introduced by Plaintiffs. None of these submissions has been met with any substantive engagement. Instead, the Court has issued one-line denials devoid of legal reasoning, factual analysis, or even basic citation—decrees by silence.

The result has been a procedural void so complete that it amounts to institutional erasure. Defendant—who prevailed in identical federal litigation—was effectively erased from the record upon re-entry into this State Court. His filings were docketed but not read, his evidence filed but not considered, and his identity as a litigant preserved in form but extinguished in function. The consequence is a diametrically opposite judgment from that of the U.S. Court, despite parallel facts and nearly identical pleadings.

If such procedural amnesia can overturn a federal ruling, then the question arises: what role do federal courts play when their findings can be undone through disregard rather than appeal?

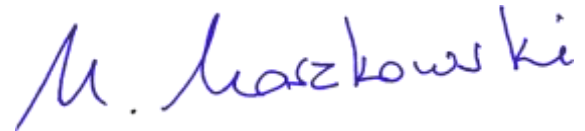
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